

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-17

BAKERLY, LLC

COMPLAINANT,

v.

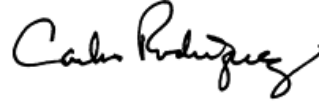
SEAFRIGO USA INC.

RESPONDENT.

COMPLAINANT'S MOTION FOR PARTIAL SUMMARY DECISION

Pursuant to Rule 502.69 and Rule 502.70 relating to dispositive motions of the Commission's Rules of Practice and Procedure (46 C.F.R. § 502.69 and § 502.70) and Rule 56 of the Federal Rules of Civil Procedure, Complainant Bakerly, LLC moves the Federal Maritime Commission to issue a partial summary decision in this proceeding whereby it finds that the lawful allocation of risks for the underlying ocean carrier's demurrage charges alleged in Count 1 of this proceeding, and other Counts in Complainant's Verified Complaint, for the door delivery of shipments subject of this proceeding, were legally assumed by Respondent, Seafrigo USA, Inc. This holding is supported pursuant to the pertinent Seafrigo USA, Inc.'s ("Seafrigo") bills of lading terms and conditions and provisions contained in Seafrigo's Rules Tariff. Pursuant to Rule 56 of the Federal Rules of Civil Procedure. This partial summary decision is appropriate since Complainant will show that there is no genuine dispute as to any material fact required to support this decision and that Complainant movant is entitled to the decision requested as a matter of law. See attached Complainant's Memorandum in Support of Motion

for Partial Summary Decision with the facts and exhibits which constitute the grounds supporting the relief requested, and corresponding legal principles upon which this Motion is based.

A handwritten signature in black ink, appearing to read "Carlos Rodriguez", is positioned above a horizontal line.

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